

25STCV38633 25STCV38633

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV38633 Hearing Date: August 19, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

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DEPARTMENT 14

ROBERT GREEN and LIANA GREEN,

Plaintiffs,

v.

CHEVRON CORPORATIOIN, et al.

Defendants.

Case No. 25STCV38633

Hearing Date: August 19, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

DEMURRERS FILED BY DEFENDANTS CHEVRON U.S.A.
INC., SOUTHERN CALIFORNIA EDISON, THE CITY OF LOS ANGELES, AND LAXFUEL
CORPORATION; MOTIONS TO STRIKE FILED BY DEFENDANTS CHEVRON U.S.A. INC. AND LAXFUEL
CORPORATION

I.

Background

On December 31, 2025, Plaintiffs Robert and Liana Green
filed their complaint for personal injury and damages. Plaintiffs allege that
Mr. Green developed Amyotrophic Lateral Sclerosis ("ALS") as a result of
exposure to toxic emissions produced by large-scale industrial facilities.

On June 12, 2026, Defendant Chevron U.S.A. Inc. ("Chevron")
demurred to and moved to strike portions of Plaintiffs' complaint. On June 15,
2026, Defendants the City of Los Angeles ("City") and Southern California
Edison ("SCE") demurred to the complaint. On the same date, Defendant LaxFuel
Corporation ("LAXFuel") demurred to and moved to strike portions of the
complaint. Defendant NRG Energy, Inc. also filed joinders to the demurrers
filed by Chevron, LAXFuel, and SCE. (All demurring defendants hereinafter
"Defendants.") Defendants demur to the complaint on the grounds that
Plaintiffs' claims are preempted by federal and state law. Defendants also
demur to the complaint on the grounds that it fails to state a cause of action
against them.

On July 13, 2026, Plaintiffs opposed, arguing that their
claims are not preempted and that the complaint states sufficient facts to
support their claims against Defendants.

On July 20, 2026, Defendants replied, reiterating that
Plaintiffs' claims are preempted and that the complaint fails to state a claim
against them.

The demurrers filed by
all Defendants are sustained. These

demurrers are sustained without leave to amend as to the causes of action for products liability, nuisance, trespass, and battery. As to Chevron, NRG, and SCE, the demurrers to the remaining causes of action are sustained with leave to amend.

City's demurrer is
sustained without leave to amend.

LAXFuel's demurrer is
sustained without leave to amend.

Chevron's motion to
strike is granted with leave to amend.

LAXFuel's motion to
strike is moot.

Plaintiffs may file and serve a
first amended complaint on or before September 11, 2026.

II.

Requests for Judicial Notice

Plaintiffs

request that the court take judicial notice of (1) California Code of Civil Procedure section 337.34 and (2) Clean Air Amendments of 1970, Conference Report No. 91-1783. The requests are granted under Evidence Code section 452, subdivisions (a) and (c) respectively.

Chevron requests
that the court take judicial notice of the following:

1. Chevron's
Title V facility permit for its El Segundo Refinery (Wickersham Decl., Exh. 5)

2. A
Google maps printout showing the distance between Plaintiffs' home and the El Segundo Refinery. (Wickersham Decl., Exh. 6.)

3. Excerpts

from the California Regional Water Quality Control Board, Los Angeles Region's order concerning its El Segundo Refinery. (Wickersham Decl., Exh. 7.)

4. Excerpts

from the California Regional Water Quality Control Board, San Francisco Bay Region's order concerning the Chevron Richmond Refinery. (Wickersham Decl., Exh. 8.)

Chevron's requests 1, 3-4 are granted under Evidence Code section 452, subdivision (c). Request number 2 is denied because a Google maps printout is not a fact that is "not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452, subd. (h).)

NRG

requests that the court take judicial notice of the following:

1. NRG's

Title V permit for the El Segundo Energy Center, issued by the South Coast Air Quality Management District on January 1, 2025 (Mina Decl., Exh.1)

2. The

California Energy Commission's Decision on the amendment for the El Segundo Energy Center, issued by the California Energy Commission on June 30, 2010 (Mina Decl., Exh. 2.)

NRG's requests are granted under Evidence Code section 452, subdivision (c).

LAXFuel

requests that the court take judicial notice of the following:

1. The

existence and the existence of the publicly available notices and warnings issued by the South Coast Air Quality Management District for permits allowing LAXFUEL to operate, bates numbered LAXFUEL000484-000726 (Rothenberger Decl., Exh. A.)

2. The

existence of and statements made by plaintiff Robert Green during his deposition. (Rothenberger Decl., Exhs. B, C.)

3. The

fact that air travel is a common necessity in today's society

4. The

fact that the value of safely maintaining jet fuel to the community at large is high.

LAXFuel's request number

1 is granted. Request numbers 2-4 are denied because they are not matters of which a court may take judicial notice under Evidence Code section 452.

LAXFuel's request for

judicial notice filed with its reply is denied.

City requests

that the court take judicial notice of the following:

1-3. Plaintiffs' claims

for damages submitted to LADWP, LAWA, and LASAN dated December 23, 2025. (City's RJN, Exhs. A-C.)

4. Plaintiffs' Ex Parte

Application for an Order for Partially Lifting the Stay on Discovery for the Limited Purpose of Taking the Preservation Deposition of Plaintiff Robert Green; Declaration of Stuart Purdy and Exhibits Attached Thereto (City's RJN, Exh. D.)

5-6. Plaintiffs' Amended

Responses to Form Interrogatories and Special Interrogatories Propounded by Defendant Chevron (City's RJN, Exhs. E-F.)

7. South Coast AQMD Rules

Book, Rules 404, 405, 1135, 1179, and 1179.1 (City's RJN, Exh. G.)

8-10. Title V permits for

LADWP, LAWA, and LASAN (City's RJN, Exhs. H-J.)

11-12. Map of

Jurisdiction and a webpage entitled "Jurisdiction published on SCAQMD website (City's RJN, Exhs. K-L.)

City's requests 1-3 and

7-12 are granted under Evidence Code section 452, subdivision (c). Request number 4 is granted under Evidence Code section 452, subdivision (d). Request numbers 5-6 are denied because they are not matters of which a court may take judicial notice under Evidence Code section 452.

III.

Discussion

A.

Legal Standards

1.

Legal Standard for General Demurrer

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

2.

Legal Standards for Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

IV.

Analysis

a.

Demurrer: Preemption and Displacement

Defendants Chevron, City, NRG, and LAXFuel demur to the complaint on the grounds that Plaintiffs' claims are preempted by federal and state laws. Defendants first argue that Plaintiffs' claims are barred by the Federal Clean Air Act ("CAA") because the U.S. Environmental Protection Agency ("USEPA"), the California Air Resources Board ("CARB"), and the South Coast Air Quality Management District ("SCAQMD") maintain and regulate emissions standards for pollutants that endanger public health.

Defendants also argue that Plaintiffs' claims are displaced by California statutes regulating emissions limitations because the California Air Resources Board ("CARB"), and the South Coast Air Quality Management District ("SCAQMD") set limitations on the emissions levels permitted in California. (Chevron Motion at pp.13-18, City Motion at p.26, LAXFuel Motion at pp.1-7.) Plaintiffs allege that Defendants "routinely produce toxic emissions as part of their normal operations, resulting in the continuous release of hazardous toxins into the surrounding environment, which pollutes the air and endangers the residents of El Segundo, including Plaintiffs, and persons living in surrounding areas." (Compl. at ¶4.) Mr. Green alleges that his exposure to these emissions were "a substantial contributing factor in [his] development of oxidative damage, oxidative stress, neuroinflammation, neuronal death, and/or ALS." (Compl. at p.5.) Significantly, Plaintiffs do not allege any violation by any Defendant of any federal or state

air emission statute, regulation, or permitting requirement.

In opposition, Plaintiffs

argue that their claims are not preempted by the CAA. Plaintiffs also argue that Defendants' demurrers fail to address whether Plaintiffs' claim that Defendants failed to warn of the health hazards associated with exposure to toxic emissions.

There are "three different types of preemption — 'conflict,' 'express,' and 'field,' ...but all of them work in the same way: Congress enacts a law that imposes restrictions or confers rights on private actors; a state law confers rights or imposes restrictions that conflict with the federal law; and therefore the federal law takes precedence and the state law is preempted." (*County of Butte v. Department of Water Resources* (2022) 13 Cal.5th 612, 628, quoting *Murphy v. National Collegiate Athletic Assn.* (2018) 584 U.S. 453, 477.) A conflict preemption exists when a state law is inconsistent with a federal law. (*Id.*) Express preemption exists when a federal statute expressly preempts state law. (*Id.*) Field preemption exists when federal law "occupies a 'field' of regulation 'so comprehensively that it has left no room for supplementary state legislation.'" (*Id.*, citing *R.J. Reynolds Tobacco Co. v. Durham County* (1986) 479 U.S. 130, 140.) The CAA expressly preempts state law in some areas, such as new motor vehicle emissions, fuel additives, and aircraft emissions. (42 U.S.C. §§ 7543, subd. (a), 7545, subd. (c)(4)(A), 7573.)

Under the CAA, the EPA promulgated national ambient air quality standards ("NAAQS") and approved State Implementation Plans ("SIPs") designed by each state to maintain and enforce the NAAQS. (*General Motors Corp. v. U.S.* (1990) 496 U.S. 530, 533.) The CAA specifically allowed states to "require discharge limitations more stringent than those required by the Federal Government" from in-state dischargers. (*International Paper Co. v. Ouellette* (1987) 479 U.S. 481, 490 (*Ouellette*) (citing 40 C.F.R. § 122.1, subd. (f).))

Here, express preemption

applies to Plaintiffs' claims against LAXFuel. Part of the Clean Air Act prohibits enforcement of state emission standards for aircraft except when identical to the federal standards. "No State or political subdivision thereof may adopt or attempt to enforce any standard respecting emissions of any air pollutant from any aircraft or engine thereof unless such standard is identical

to a standard applicable to such aircraft under this part.” (42 U.S.C. § 7573.) Plaintiffs allege that “toxic Emissions from LAX Airport may occur from various sources including, but not limited to, aircraft engines, power units, ground support equipment, and airport traffic.” (Compl. at ¶12.) Plaintiffs allege that these emissions caused Mr. Green’s injuries. (Id.) Plaintiffs’ claims against LAXFuel for emissions produced by aircraft engines, power units, and airport traffic are expressly preempted by the CAA. The demurrer is sustained as to Plaintiffs’ claims against LAXFuel for emissions produced by aircraft and aircraft engines. Additionally, it is unclear what Plaintiffs mean by ground support equipment and airport traffic. If “airport traffic” means aircraft coming in and out of LAX, then the claims related to airport traffic are expressly preempted by the CAA. If “airport traffic” and “ground support equipment” means vehicles coming in and out of LAX, the claims may still be preempted by the provisions of the CAA related to motor vehicles. (42 U.S.C. § 7543, subd. (a), (c) [“No State or any political subdivision thereof shall adopt or attempt to enforce any standard relating to the control of emissions from new motor vehicles or new motor vehicle engines subject to this part... Whenever a regulation with respect to any motor vehicle part or motor vehicle engine part is in effect under section 7541(a)(2) of this title, no State or political subdivision thereof shall adopt or attempt to enforce any standard or any requirement of certification, inspection, or approval which relates to motor vehicle emissions and is applicable to the same aspect of such part.”].) Accordingly, the CAA expressly preempts Plaintiffs’ claims against LAXFuel. The court declines to reach LAXFuel’s and City’s arguments pertaining to the Airline Deregulation Act.

Express preemption is not at issue as to Plaintiffs’ claims against City and Chevron because the CAA expressly permits states to adopt more stringent emissions standards for stationary emissions sources than those required in by the CAA. (Ouellette, supra, 479 U.S. at p. 490; 42 U.S.C. § 7416 [“Except as otherwise provided....nothing in this chapter shall preclude or deny the right of any State or political subdivision thereof to adopt or enforce (1) any standard or limitation respecting emissions of air pollutants or (2) any requirement respecting control or abatement of air pollution; except that if an emission standard or limitation is in effect under an applicable implementation plan or under section 7411 or section 7412 of this title, such State or political subdivision may not adopt or enforce any emission standard or limitation which is less stringent than the standard or limitation under such plan or section.”].) Additionally,

the CAA requires states to regulate and enforce performance standards for stationary sources of emissions in their jurisdictions. (*American Elec. Power Co., Inc. v. Connecticut* (2011) 564 U.S. 410, 424.) Although Federal courts have held that the CAA displaces any federal common law right related to the EPA's regulation of emissions, there is no authority on whether the CAA directly preempts state common law claims for damages caused by emissions regulated by the CAA. (*Id.* at p. 426.)

Because the CAA allows states to set emissions standards that are more stringent than the standards stated in the CAA, the CAA does not occupy the field of regulation pertaining to emissions standards. Additionally, state common law claims for damages caused by exposure to emissions do not necessarily conflict with the CAA because the states are authorized to set more stringent emissions standards than the CAA. Conflict and field preemption thus do not apply to Plaintiffs' claims. The CAA therefore does not preempt Plaintiffs' claims against City and Chevron.

But if federal law does not preempt state common law claims, the state's comprehensive regulatory scheme does. Chevron argues that Plaintiffs' claims are displaced by California law regulating emissions of stationary sources. (Chevron motion at p.18 ["The comprehensive mix of federal, state, and local rules and regulations under the Clean Air Act 'occupy the field' of refinery air emissions. Indeed, 'it is difficult to understand how an activity expressly permitted and extensively regulated by both federal and state government could somehow constitute a public nuisance.' (TVA, *supra*, 615 F.3d at p. 296.) The applicable laws leave no room for a jury to decide, on its own and on a case-by-case basis, whether the Refinery's emissions controls or its warnings to El Segundo residents were legally sufficient."].) City joins Chevron's arguments regarding displacement. (City motion at p.26.)

While there is a presumption against displacement of state common law claims by state statutes, the language or purpose of a statute may "manifest a legislative intent to repeal" a common law rule. ((*McMillin Albany LLC v. Superior Court* (2018) 4 Cal.5th 241, 249, quoting *California Assn. of Health Facilities v. Department of Health Services* (1997) 16 Cal.4th 284, 297 ("California Assn. of Health Facilities").) A state common law rule may be displaced by either "express declaration" or by "necessary implication." (*Fahlen v. Sutter Central Valley Hospitals* (2014) 58 Cal.4th 655, 669.) A common law

rule is displaced by implication when there is “no rational basis for harmonizing two potentially conflicting laws.” (California Assn. of Health Facilities, *supra*, 16 Cal.4th at p.297, citing *People v. Zikorus* (1983) 150 Cal.App.3d 324, 330.) Common law may also be displaced where a California statute has fully occupied a field of litigation. (*Zengen, Inc. v. Comerica Bank* (2007) 41 Cal.4th 239, 251.) A statute fully occupies a field when it appears that the Legislature intended to cover the entire subject. (*Jacobs Farm/Del Cabo, Inc. v. Western Farm Service, Inc.* (2010) 190 Cal.App.4th 1502, 1521, citing *I.E. Associates v. Safeco Title Ins. Co.* (1985) 39 Cal.3d 281, 285.) General and comprehensive legislation minutely describing the course of conduct, parties, things affected, limitations, and exceptions covered by the legislation indicates a legislative intent that the statute completely supersede and replace the common law dealing with the subject matter. (*I.E. Associates, supra*, 39 Cal.3d at p. 285.)

Comprehensive

statutory regulations displaced a common law cause of action in *K.C. Multimedia, Inc. v. Bank of America Technology & Operations, Inc.* (2009) 171 Cal.App.4th 939 The Court of Appeal determined that California's Uniform Trade Secrets Act (“UTSA”) displaced common law claims based on misappropriation of trade secrets because the statute's breadth suggested a legislative intent to preempt the common law. (*K.C. Multimedia, supra*, 171 Cal.App.4th at p.954.) Specifically, the statute set forth “the definition of ‘misappropriation’ and ‘trade secret,’ injunctive relief for actual or threatened misappropriation, damages, attorney fees, methods for preserving the secrecy of trade secrets, the limitations period, the effect of the title on other statutes or remedies, statutory construction, severability, the application of title to acts occurring prior to the statutory date, and the application of official proceedings privilege to disclosure of trade secret information.” (*Ibid.*) This level of “comprehensive structure and breadth” was sufficient for the Court of Appeal to find that the UTSA occupied the field in California and displaced common law trade secret misappropriation claims. (*Ibid*; see also *Van de Kamp v. Gumbiner* (1990) 221 Cal.App.3d 1260 [Court of Appeal found that statutes governing regulation and supervision of health plans occupied the field because the statutes gave the Department of Corporations sole regulatory authority over health plans, made remedies available that would displace antecedent common law causes of action, and had legislative history showing that the Legislature enacted the laws to shift regulation to the Department of Corporations and away from common law remedies.])

Here, Chevron argues that

“an air permit is, literally, permission.” It avers that it is permission from the State of California to emit substances into the air that meet regulatory standards. Here, the State gave the Refinery permission to emit the very chemicals that plaintiffs allege caused Mr. Green’s ALS. (Chevron’s reply at p.6.)

California’s regulations

pertaining to air resources enacted to conform the California Clean Air Act with the CAA according to California’s SIP are codified in Division 26 of the Health and Safety Code. The language of the Health and Safety Code demonstrates that the Legislature intended to occupy the field of emissions standards. In Chapter 3.5 of the Health and Safety Code, the chapter governing Toxic Air Contaminants, Health and Safety Code section 39656 provides that “it is the intent of the Legislature that the state board and the districts implement a program to regulate toxic air contaminants that will enable the state to receive approval to implement and enforce emission standards and other requirements for air pollutants subject to Section 112 of the federal act (42 U.S.C. § 7412).” Additionally, the Health and Safety Code provides that the Legislature “finds and declares that local and regional authorities have the primary responsibility for control of air pollution from all sources, other than emissions from motor vehicles.” (Health & Saf. Code, § 40000.) “‘Local or regional authority’ means the governing body of any city, county, or district.” (Id., § 39037.) The state board and districts “shall adopt and enforce rules and regulations to achieve and maintain the state and federal ambient air quality standards in all areas affected by emission sources under their jurisdiction, and shall enforce all applicable provisions of state and federal law.” (Id., § 40001.)

Health and Safety Code

section 39662 requires the State Air Resources Board (“the board”) to determine whether a substance is a toxic air contaminant after receiving findings of a scientific review panel. (Id., § 39662, subd. (a).) After conducting a public hearing, the board is required to list by regulation the substances determined to be toxic air contaminants and “specify a threshold exposure level, if any, below which no significant adverse health effects are anticipated.” (Id., § 39662, subd. (b), (c).) “Any person may petition the state board to review a determination made pursuant to this section.” (Id., § 39662, subd. (e).) “For toxic air contaminants for which the state board has determined, pursuant to Section 39662, that there is a threshold exposure level

below which no significant adverse health effects are anticipated, the airborne toxic control measure shall be designed, in consideration of the factors specified in subdivision (b) of Section 39665, to reduce emissions sufficiently so that the source will not result in, or contribute to, ambient levels at or in excess of the level which may cause or contribute to adverse health effects as that level is estimated pursuant to subdivision (c) of Section 39660.” (Id., § 39666, subd. (b).) District boards are permitted to establish by regulation permit systems requiring persons building, erecting, altering, replacing, operating, or using any article, machine, equipment, or other contrivance which may cause the issuance of air contaminants to obtain a permit from an air pollution officer. (Id., § 42300, et seq.) The regulations regarding permitting also allow any “aggrieved person” to contest the permit by public hearing. (Id., § 52302.1.) The board is also required to make information about air emissions, public health impacts, and economic impacts available to the public. (Id., § 39601.5.) Any person who violates the regulations, emissions limitations, or permit conditions adopted under Division 26 of the Health and Safety Codes is subject to civil penalties. (Id., § 39674.)

Like the trade secret statute described in *K.C. Multimedia, Inc.*, here, California emissions regulations are comprehensive, describing the activities affected, the process for setting emissions limitations, civil penalties for violators of the emissions regulations, and action which any person may take to request that the board review its emissions limitations. The emissions regulations provide a review process to address disagreements with the state’s determination of emissions limitations, as well as civil penalties to address violations of emissions regulations. The fact that the Health and Safety Code specifically delegates rulemaking and enforcement authority to the board and districts implies that there is no room for the courts to set different emissions limitations through common law claims for exposure to toxic emissions. As for Plaintiffs’ argument that the regulations do not regulate warnings, the regulations do require the board to make information about air emissions and public health impacts available to the public § 39601.5.) The language of the California emissions regulations thus implies that the Legislature intended the emissions limitations determined by the board and districts to occupy the field in the regulation of emission, including warnings about emissions.

Accordingly, the demurrers filed by Chevron, NRG, and City are sustained with leave to amend because

Plaintiffs' claims are displaced by California regulations governing emissions limitations.

LAXFuel's demurrer is also sustained because Plaintiffs' claims against it are preempted by the CAA. Because the CAA expressly preempts state claims regarding emissions from aircraft, the LAXFuel's demurrer is sustained without leave to amend.

b. Demurrer:

Causation

Defendants

Chevron, City, SCE, NRG, and LAXFuel demur to the complaint on the grounds that the complaint fails to allege sufficient facts to show that their conduct caused Mr. Green's injuries. (Chevron motion at p.12 ["The Complaint alleges in conclusory fashion that Mr. Green's ALS was caused by his "regular and frequent" exposure to ambient levels of air pollution. Missing from the Complaint, however, are factual allegations of causation specific to the Refinery—Plaintiffs offer no allegations demonstrating that Mr. Green was exposed to toxicologically significant levels of any air contaminants from the Refinery."]; City Motion at p.24 ["The Complaint is bereft of specific allegations that Mr. Green's exposure to particular toxins caused his illness, identify specific toxins originating from the City's facilities, or explain how alleged City-emanating toxins substantially contributed to Mr. Green's illness. Instead, Plaintiffs speculate about possible sources, possible exposures, and possible causation."]; SCE Motion at p.9 ["Plaintiffs do not identify what specific toxins were present in SCE's specific emissions, they do not allege that any toxins attributable to SCE's emissions entered Robert Green's body (let alone in what amounts), and they do not allege that any SCE emission was a substantial (as opposed to merely "potential") factor in causing his alleged ALS."]; LAXFuel motion at p.14 [joining Chevron's causation argument].)

In

opposition, Plaintiffs argue that the complaint properly pleads causation and that Bockrath does not require Plaintiffs to prove causation in the complaint. (Opp. LAXFuel at p.14, Opp. SCE at p.6, Opp. NRG at p.3, Opp. City at p.11, Opp. Chevron at p.9.)

The

parties dispute whether the complaint states sufficient facts under Bockrath v.

Aldrich Chemical Company (1999) 21 Cal.4th 71 to support Plaintiffs' claim that Defendants' emissions were a substantial factor in causing Mr. Green's illness. Bockrath set forth the following guidelines:

"(1)

Plaintiff must allege that he was exposed to each of the toxic materials claimed to have caused a specific illness. An allegation that he was exposed to "most and perhaps all" of the substances listed is inadequate.²

(2)

He must identify each product that allegedly caused the injury. It is insufficient to allege that the toxins in defendants' products caused it.

(3)

He must allege that as a result of the exposure, the toxins entered his body.

(4)

He must allege that he suffers from a specific illness, and that each toxin that entered his body was a substantial factor in bringing about, prolonging, or aggravating that illness."

(Bockrath, supra, 21 Cal.4th at pp.79-80.) If a plaintiff's knowledge of the precise cause of his injury is limited, he may set forth these facts in a conclusory fashion. (Id. at p.80 ["plaintiffs may, and should, allege the foregoing facts succinctly, and may do so in a conclusory fashion if their knowledge of the precise cause of injury is limited."].)

The complaint alleges the following:

(1)

"Toxic Emissions from LAX Airport may occur from various sources including, but not limited to, aircraft engines, power units, ground support equipment, and airport traffic. These Toxic Emissions pollute neighboring areas in close proximity to the airport, including the City of El Segundo, to which Plaintiff ROBERT GREEN may have been exposed and was a potential substantial contributing factor in causing Plaintiffs' Injuries." (Compl. at p.12.) "The production of electricity caused the release of some Toxic Emissions, to which Plaintiff ROBERT GREEN may have been exposed and was a potential substantial contributing

factor in Plaintiffs' Injuries." (Compl. at ¶¶13, 16, 18.) "Jet fuel can cause the release of Toxic Emissions, to which Plaintiff ROBERT GREEN may have been exposed and was a potential substantial contributing factor in Plaintiffs' Injuries." (Compl. at ¶20.)

(2)

Mr. Green was exposed to "sulfur dioxide, nitrogen oxides, nitrogen dioxide, nitric oxide, acid aerosols, fine particulate matter, heavy metals (copper, nickel, lead), benzene, formaldehyde, hydrogen sulfide, and/or other hazardous emissions or substances" (Compl. at ¶1);

(3)

Mr. Green alleges he breathed in these toxic emissions. (Compl. at ¶23.)

(4)

Mr. Green alleges that his exposure to toxic emissions was a substantial factor in causing his "development of oxidative damage, oxidative stress, neuroinflammation, neuronal death, and/or ALS." (Compl. at ¶11.)

The

complaint repeatedly states that Mr. Green "may" have been exposed to toxic emissions. Like the "most and perhaps all" language which was insufficient to survive a demurrer in Bockrath, the allegation that Mr. Green "may" have been exposed to Defendants' toxic emissions is improperly speculative and fails to meet the causation pleading requirements set forth in Bockrath. Causation is an element in all causes of action, and thus renders all causes of action inadequately pleaded. The demurrers for Plaintiffs' failure adequately to plead causation is sustained with leave to amend.

c.

Demurrer: Products Liability

Defendants

demur to the cause of action for products liability on the grounds that the complaint fails to allege that Mr. Green was exposed to any products exposing Defendants to liability.

"The

elements of a strict products liability cause of action are a [1] defect in the manufacture or design of the product

or a failure to warn, [2] causation, and [3] injury. [citation omitted]" (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.) In toxic exposure cases, plaintiffs must allege that each named defendant's identified product was a substantial factor in causing the illness, instead of alleging globally that all or most of the defendants' products were the cause. (Bockrath v. Aldrich Chemical Co. (1999) 21 Cal.4th 71, 80.) Plaintiffs in asbestos cases may "allege...facts succinctly, and may do so in a conclusory fashion if their knowledge of the precise cause of injury is limited" and "allege additional facts that are important in apprising the defendant of the basis for the claim." (Id.)

Chevron,

SCE, NRG, and LAXFuel argue that they are not subject to the products liability cause of action because the complaint fails to state that Mr. Green was exposed to a product. (Chevron Motion at p.21; LAXFuel Motion at p.10; SCE Motion at p.14.)

Chevron

argues that the complaint alleges Mr. Green was injured by emissions released during the manufacturing process. (Chevron motion at p. 22 ["Here, the Complaint alleges that Mr. Green was injured by Chevron's petroleum products during the manufacturing process. As alleged, those petroleum products were neither on the market nor in use. Accordingly, Plaintiffs have not stated a claim against Chevron for strict products liability."].) As Chevron points out, a product is on the market once it leaves the control of the manufacturer and there is some transfer of property or a property right. (Nelson v. Superior Court (2006) 144 Cal.App.4th 689, 694-695; United Pacific Co. v. Southern Cal. Edison Co. (1985) 163 Cal.App.3d 700, 708 ["The concept of marketing—of placing a product in the stream of commerce—necessarily involves transfer of property or some property right."].)

Here,

the complaint alleges that "Defendants and Does manufactured, sold, designed, and/or distributed petroleum products, treated wastewater, and/or electricity ("Defendants' Products") which released Toxic Emissions into the ambient air." (Compl. at ¶52.) While the complaint alleges Defendants sold petroleum, treated wastewater, and electricity, the complaint fails to allege that these substances left Defendants' control via a transfer of property or a property right. An allegation that these substances were released into the ambient air is

insufficient to plead that Mr. Green was exposed to a product that Defendants placed on the market.

Accordingly,

Defendants' demurrer to the cause of action for products liability is sustained on the grounds that the complaint fails to state sufficient facts showing that Mr. Green was exposed to a product that was placed on the market. Because it does not appear that amendment will cure this defect, the demurrer is sustained without leave to amend as to the products liability cause of action.

d. Demurrer:

Ultrahazardous Activity

Defendants demur to the

cause of action for strict liability on the grounds that the complaint fails to state that Defendants engaged in an ultrahazardous activity. (Chevron Motion at p.22, SCE Motion at p.14, LAXFuel at pp.9-10, City Motion at p.22.)

"[C]ertain activities

under certain conditions may be so hazardous to the public generally, and of such relative infrequent occurrence, that [the hazard] may well call for strict liability as the best public policy." (Luthringer v.

Moore (1948) 31 Cal.2d 489, 500.) "The doctrine of

ultrahazardous activity provides that one who undertakes an ultrahazardous activity is liable to every person who is injured as a proximate result of that

activity, regardless of the amount of care he uses." (Pierce v. Pacific Gas & Electric Co. (1985) 166 Cal.App.3d 68, 85.) An activity is

ultrahazardous if it (1) necessarily involves a risk of serious harm to others that cannot be eliminated by the exercise of due care; and (2) is not a matter of common usage. (See, e.g., Edwards v. Post Transportation Co. (1991) 228 Cal.App.3d 980, 983; Luthringer v. Moore (1948) 31 Cal.2d 489, 498.)

Ordinarily,

whether an activity is ultrahazardous cannot be decided on a demurrer. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 906.) But here, the ultrahazardous activity claim is based on emissions, and as we have seen, that claim is subject to demurrer because the state regulatory scheme displaces common law claims including this one against Chevron, NRG, LAXFuel, and the City. In addition, the failure adequately to plead causation for all claims applies

to these defendants and also SCE.

Accordingly, for all defendants, the demurrers to the cause of action for strict liability based on an ultrahazardous activity is sustained with leave to amend

e. Demurrer:

Nuisance

For this theory as others, Plaintiffs claim a nuisance exists even if the Defendants comply with all air emissions rules. Apart from the displacement grounds for dismissing this claims, the parties raise others.

Public Nuisance

Defendants argue that the cause of action for public nuisance fails because the complaint fails to allege “any factual allegations distinguishing Plaintiffs’ alleged injury in kind from that allegedly suffered by the broader El Segundo community.” (See, e.g., SCE Motion at p.17.) Plaintiffs argue in opposition that the complaint alleges Mr. Green’s injuries were different from the type suffered by the general public.

“A public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civ. Code, § 3480; see *Birke v. Oakwood Worldwide* (2009) 169 Cal.App.4th 1540, 1548.) “A private person may maintain an action for a public nuisance, if it is specially injurious to himself, but not otherwise.” (Civ. Code, section 3493; see *Birke*, supra, 169 Cal.App.4th at 1548.)

Here, the complaint alleges in a conclusory manner that Mr. Green’s “injuries are different from the type of harm suffered by the general public” but fails to state that Defendants’ emissions were specially injurious to Mr. Green. (Compl. at ¶80.) Although the complaint alleges that Mr. Green developed ALS as a result of exposure to the emissions, the complaint alleges that all members of the public in the vicinity of Defendants’ facilities were exposed to the same emissions. Thus, Mr. Green’s exposure to the emissions is the same as exposure to the general

public. The complaint fails to state that the regulated emissions were specially injurious to Mr. Green. The public nuisance claim fails to state a cause of action; the demurrers to the claim for public nuisance is sustained without leave to amend.

Private Nuisance

To state a cause of action for private nuisance, a party must first allege a non-trespassory interference with the private use and enjoyment of property. (Civ. Code, §§ 3479-3481; *San Diego Gas & Electric Co. v. Sup. Ct.* (1996) 13 Cal.4th 893, 938.) Liability for private nuisance also requires proof of two additional elements: (i) substantial actual damage, which is (ii) unreasonable as to its nature, duration, or amount. (*San Diego Gas & Electric Co.*, supra, 13 Cal.4th at 937-38.) Whether the interference is substantial and unreasonable is a question of fact requiring determination of all the circumstances of the case. (See *Mendez v. Rancho Valencia Partners, LLC* (2016) 3 Cal.App.5th 248, 263-64.)

The parties demur to the cause of action for private nuisance on the grounds that the complaint fails to state that Defendants' emissions prevented Plaintiffs' use and enjoyment of their property. (See e.g., SCE motion at p.17.) In opposition, Plaintiffs argue that the complaint sufficiently alleges that Defendants' emissions interfered with their comfortable enjoyment of life and property in the surrounding community

Here, the complaint alleges that "Defendants created and/or permitted a condition, such as the release of Toxic Emissions, that was harmful to Plaintiff's health, offensive to the senses, indecent, an obstruction to the free use of property so as to interfere with the comfortable enjoyment of life or property, and/or a potentially dangerous condition to Plaintiff ROBERT GREEN's Properties." (Compl. at ¶80.) The complaint states in a conclusory manner that Defendants' emissions were harmful to his senses but fails to state facts showing that the emissions interfered with Plaintiffs' private use and enjoyment of their land. The facts stated are thus insufficient to support a cause of action for private nuisance.

SCE's demurrers to the causes of action for public and private nuisance are sustained without leave to amend because it

does not appear that the defects identified above can be cured by amendment.

f. Demurrer:

Trespass

“Trespass is an unlawful interference with possession of property.’ [Citation.] The elements of trespass are: (1) the plaintiff’s ownership or control of the property; (2) the defendant’s intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant’s conduct was a substantial factor in causing the harm.” (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 261–262.) Intangible intrusions, such as by noise and electric or magnetic fields, are insufficient to support a cause of action for trespass unless the intrusions cause physical damage to a property. (San Diego Gas & Electric Co. v. Superior Court (1996) 13 Cal.4th 893, 937 [“When, as here, the conduct of a public entity results in an intangible intrusion onto the plaintiff’s property that does not physically damage the property, the question whether there has been a ‘taking or damaging’ of the property sufficient to support a cause of action for inverse condemnation is more difficult. In these circumstances the plaintiff must allege that the intrusion has resulted in a burden on the property that is direct, substantial, and peculiar to the property itself.”].)

Plaintiffs’ trespass

claim fails because Plaintiffs “do not allege, nor could they plausibly allege, that there has been any physical deposit on their properties or any physical damage to the properties themselves.” (See e.g., SCE Motion at p.16.) In opposition, Plaintiffs argue that the intrusion of Defendants’ emissions constitutes a physical deposit onto Plaintiffs’ properties sufficient to support a cause of action for trespass.

Plaintiffs cite Elton

v. Anheuser-Busch Beverage Group, Inc. (1996) 50 Cal.App.4th 1301, 1306 to support their argument that the intrusion of Defendants’ emissions is sufficient to support a claim for trespass. There, the Court of Appeal explained that intangible intrusions such as by dust, invisible particles, noise, or vibrations may constitute trespass if they cause physical damage. (Elton, supra, 50 Cal.App.4th at p.1306.) Here, the complaint alleges that “as a result of Defendants’ Toxic Emissions that entered Plaintiff ROBERT GREEN’s

Properties. The entry of Defendants' Toxic Emissions was a substantial factor in causing Plaintiff's Injuries." (Compl. at ¶77.) The complaint fails to allege that Defendants' emissions physically damaged Plaintiffs' property. Even if Defendants' emissions may constitute intangible intrusions into Plaintiffs' property, there are no allegations in the complaint that the emissions resulted in physical damage to Plaintiffs' property.

Accordingly, the demurrer to the cause of action for trespass is sustained. Because it does not appear that amendment will cure the defects identified above, the demurrer is sustained without leave to amend.

g. Demurrer:
Battery

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (So v. Shin (2013) 212 Cal.App.4th 652, 668-669.)

Here, as discussed, the battery claims against Chevron, LAXFuel, City, and NRG are displaced by state statutes regulating emissions. The demurrers filed by those Defendants are sustained.

SCE demurs to the cause of action for battery on the grounds that "there is no factual allegation that SCE released emissions for the purpose of causing harmful or offensive contact with Robert Green or any other person." (SCE Motion at p.18.) In opposition, Plaintiffs argue that they "are entitled to the reasonable inference that intentional releases of toxic emissions with knowledge of their harmful nature and without consent can support their battery claim." (Opp. SCE at p.15.)

The complaint alleges that "Defendants intentionally released Toxic Emissions and knowingly exposed Plaintiff ROBERT GREEN to significant levels of Toxic Emissions with intent to harm or offend Plaintiffs." (Compl. at ¶86.) Additionally, "Plaintiff ROBERT

GREEN did not consent to exposure to Toxic Emissions, and Plaintiff ROBERT GREEN was harmed due to exposure to Toxic Emissions released from Defendants' Facilities and sustained Plaintiffs' Injuries." (Compl. at ¶87.) Aside from the conclusory allegations, there are no factual allegations that any Defendant intended to harm or offend Mr. Green by releasing its emissions. It does not appear that Plaintiffs can amend the pleading to state that any Defendant intended to harm or offend Mr. Green by releasing emissions. Accordingly, the demurrer to the cause of action for battery is sustained without leave to amend.

h. Demurrer:

Public Entity Liability

As discussed, the common law claims against City are displaced by state regulations regarding emissions. Additionally, the complaint fails to state facts showing City caused Plaintiff's injuries. The court separately addresses City's arguments pertaining to Plaintiffs' compliance with the Government Tort Claims Act and sovereign immunity.

Compliance

with Gov. Code § 945.4

"Except as provided in Sections 946.4 and 946.6, no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board, in accordance with Chapters 1 and 2 of Part 3 of this division." (Gov. Code, § 945.4.) "The board shall act on a claim in the manner provided in Section 912.6, 912.7, or 912.8 within 45 days after the claim has been presented. If a claim is amended, the board shall act on the amended claim within 45 days after the amended claim is presented." (Gov. Code, § 912.4, subd. (a).) In other words, claimants must wait 45 days after presenting a claim to sue a public entity. (See *Harland v. City of West Hollywood* (2026) 120 Cal.App.5th 1166, 1172.)

"Where there has been an attempt to comply [with the claims statute] but the compliance is defective, the test of substantial

compliance controls. Under this test, the court must ask whether sufficient information is disclosed on the face of the filed claim 'to reasonably enable the public entity to make an adequate investigation of the merits of the claim and settle it without the expense of a lawsuit.'" (Pacific Tel. & Tel. Co. v. County of Riverside (1980) 106 Cal.App.3d 183, 188.) There is a twofold test for substantial compliance: Is there some compliance with all of the statutory requirements; and, if so, is this compliance sufficient to constitute substantial compliance?" (Id.) If a notice was sufficient to trigger an obligation on the part of the agency to give written notice to the claimant of the sufficiency or insufficiency of the claim, then the claim is substantially compliant. (Phillips v. Desert Hospital Dist. (1989) 49 Cal.3d 699, 705.)

Where a claimant files an action against a public entity before the expiration of the 45-day waiting period, a claimant substantially complies with the claims statute despite the failure to follow Gov. Code, section 945.4 if he served the complaint on the public entity more than 45 days after presenting a government claim. (Malear v. State of California (2023) 89 Cal.App.5th 213, 225 ["By itself, the premature commencement of a lawsuit against a public entity does not deprive the entity of its ability to consider a pending government claim, whether for immediate purposes or for fiscal and other types of planning. Nor does the mere filing of a premature complaint cause the public entity to incur litigation costs, as the various statutory deadlines for appearing in an action are triggered by service of the summons and complaint. (See Code Civ. Proc., §§ 412.20, subd. (a)(3) [time for responding to complaint], 430.40, subd. (a) [time for demurring], 435, subd. (b)(1) [time for moving to strike].) Thus, for practical purposes, the lawsuit here did not begin in earnest until defendants were served with Malear's first amended complaint, at which point defendants' investigation and consideration of Malear's claim was already complete."].)

Here, City demurs to the complaint on the grounds that Plaintiffs violated Government Code section 945.4 by filing the complaint less than 45 days after they submitted their government claim. (City Motion at p.13.) In opposition, Plaintiffs argue that they nevertheless substantially complied with Government Code section 945.4 because they did not serve City with the complaint until five days after City denied their government claim. (Opp. at p.3.) Because Plaintiffs did not serve the complaint on City until after the denial of their government claim, City accrued no litigation costs. Therefore, Plaintiffs substantially complied with the claims statute despite prematurely

filing the complaint.

Gov. Code § 911.2

City also demurs to the complaint on the grounds that Plaintiffs failed to make a government claim to City within six months of accrual of the cause of action. (City Motion at p.19.) In opposition, Plaintiffs argue that a public entity waives any defense as to the time limit for presenting a claim unless it gives written notice of the defect within 45 days after the claim is presented, citing Government Code section 911.3, subdivision (b). (Opp. City at p.5.) In reply, City argues that Government Code section 911.3 does not apply because Plaintiffs filed their complaint and deprived City of the opportunity to investigate the claim. (Reply at p.12.) City also argues that the claim incorrectly stated the date and time of Mr. Green's injury as November 19, 2025, the date of his ALS diagnosis. (Id.)

As discussed, Plaintiffs did not serve City with the summons and complaint until after City denied their government claim. Thus, Plaintiffs' premature filing did not cause City to incur litigation costs or cut off City's ability to continue investigating Plaintiffs' claim. As for the argument that Plaintiffs' government claim stated the incorrect date for Mr. Green's injury, the claim goes on to state in an attachment that he was exposed to toxic emissions throughout the 26 years he has lived in El Segundo. (City's RJN, Exh. A.) Plaintiffs' government claim put City on notice that their claims included exposure to toxic emissions dating back 26 years. Because City failed to give notice of a defense as to the time limit for presenting a government claim, the defense is waived under Government Code section 911.3, subdivision (b).

Dangerous

Condition of Public Property

Government Code section 835 states: "Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.”

For

example, in *Bonanno v. Central*

Contra Costa Transit Auth. (2003) 30 Cal.4th 139, 148-150 (“*Bonanno*”)

the plaintiff there was struck by a car while crossing the street in front of a bus stop. The plaintiff there argued that the bus stop was located on a street with heavy traffic that was unsafe to cross and that the location of the bus stop itself exposed her to the risk of injury. (*Bonanno*, supra. 30 Cal.4th at p. 146.) The public transportation authority, CCCTA, was a government entity that controlled the location of the bus stop. (*Id.*, at p. 147.) Even if CCCTA did not own or control the property where the plaintiff was injured, it could be liable for her injuries because the location of the bus stop exposed Plaintiff to risk of injury. (*Id.*, at p. 151.) In other words, a public entity’s liability for a dangerous condition of its property depends on whether the physical condition of the property itself increases the risk of injury.

Here, City demurs to the cause of action for a dangerous condition of public property on the grounds that “Plaintiffs do not plead a physical deficiency with the City-operated facilities.” (City Motion at p.23.) In opposition, Plaintiffs argue that the complaint sufficiently alleges that their proximity to City’s facilities and the toxic emissions at those facilities caused their injuries. (Opp. City at pp.8-9.)

The complaint alleges “Plaintiff

ROBERT GREEN may have been harmed in part by dangerous conditions, specifically the release of some Toxic Emissions, from facilities owned, managed, operated, and/or controlled by Public Entities. Further, the possible release of Toxic Emissions into the ambient air from Public Entities’ facilities created a foreseeable risk of injury to the general public, including to Exposed Persons ingesting and/or inhaling the Toxic Emissions in the neighboring areas in close proximity to the Public Entities’ facilities.” (Compl. at p.72.) The complaint fails to state that the physical

condition of City's facilities caused Mr. Green's injuries or increased his risk of injury. Unlike Bonanno, where the location of a bus stop on a street with heavy traffic increased the risk that people using the bus stop would be injured while crossing the street to use the bus stop, the risk of exposure was not caused any physical condition of City's facilities but by the facilities' engaging in permitted activities. Plaintiffs do not claim that by substandard maintenance or failure to follow regulatory standards, the city caused an unlawful level of emissions. The complaint therefore fails to state that a physical condition of City's facilities caused Plaintiffs' injuries. City's demurrer to the cause of action for a dangerous condition of public property is sustained. Because it does not appear that the complaint may be amended to cure the deficiencies with this cause of action, the demurrer is sustained without leave to amend.

Sovereign Immunity

Under

the Government Claims Act, "[a] public entity is not liable for an injury" [e]xcept as otherwise provided by statute" (Gov. Code, section 815; State ex rel. Department of California Highway Patrol v. Superior Court (2015) 60 Cal.4th 1002, 1009.) A plaintiff claiming direct tort liability against a public entity must identify a specific statute declaring the entity to be liable, or at least creating some specific duty of care by the agency in favor of the injured party, and not on the general tort provisions of Code Civ. Proc., section 1714. (de Villers v. County of San Diego (2007) 156 Cal.App.4th 238, 252.)

Because

all liability under the Government Claims Act is statutory, "the general rule that statutory causes of action must be pleaded with particularity is applicable." (Susman v. City of Los Angeles (1969) 269 Cal.App.2d 803, 809.) Thus, "to state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty." (Searcy v. Hemet Unified School District (1986) 177 Cal.App.3d 792, 802.)

There

is no common law tort liability for public entities in California, including negligence. (McCarty v. State of California Dept. of Transp. (2008) 164 Cal.App.4th 955, 975.) A direct claim against a governmental entity asserting

negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the entity to the injured party, may not be maintained. (*de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 255-256.) Liability for negligent supervision and/or retention of an employee is one of direct liability for negligence, not vicarious liability. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815.)

Here,

City demurs to Plaintiffs' claims for negligence, strict liability, premises liability, trespass, nuisance, and battery on the grounds that there is no common law tort liability for public entities in California. (City Motion at pp.22-23.) In opposition, Plaintiffs argue that their claims fall within statutory exceptions to sovereign immunity. Plaintiffs argue that that common law claims may survive if they are founded on a dangerous condition of public property. (Opp. City at pp.10-11.) Plaintiffs cite *Downey v. City of Riverside* (2024) 16 Cal.5th 539, 545, 551 and *Zuniga v. Housing Authority* (1995) 41 Cal.App.4th 82 to support this argument. *Zuniga* did not address whether a common law tort could remain if it was based on a cause of action for a dangerous condition of public property. Rather, the court there found there was a statutory basis for liability against a public entity for a dangerous condition of public property. (*Zuniga v. Housing Authority* (1995) 41 Cal.App.4th 82, 95.) The court separately addressed the common law cause of action for negligent infliction of emotional distress and did not discuss the public entity's liability for that cause of action. (*Id.* at pp.102-104.) *Downey* likewise did not discuss whether a public entity could be liable for a common law tort if the torts arose from a dangerous condition of public property. Because there is no common law tort liability for public entities in California, there is no statutory basis for the negligence, strict liability, premises liability, trespass, nuisance, and battery causes of action alleged against City.

Loss of Consortium Claim

A spouse who fails to state a claim for loss of consortium on a government claim fails to satisfy the government claims statute even if the primary claimant filed a government claim for the primary claimant's injuries. (*Shelton v. Superior Court* (1976) 56 Cal.App.3d 66, 82.) A claim for loss of consortium is a new theory of liability which rests on entirely different facts from the primary claimant's claims. (*Id.*) Accordingly, a primary claimant's government claim fails to put a public entity

on notice of his spouse's claim for loss of consortium. (Id.)

Here,

City argues that Ms. Green failed to comply with the government claims requirement because she failed to file a government claim. The court granted City's request for judicial notice of Mr. Green's government claims. (City's RJN, Exhs. A-C.) Ms. Green's claim for loss of consortium is not included in the claim. Accordingly, Ms. Green failed to comply with the government claims requirement.

As

discussed, City's demurrer was sustained with leave to amend on the grounds that its claims arising from Plaintiff's exposure to toxic emissions are displaced by state regulations. City's demurrer was also sustained with leave to amend on the grounds that the complaint failed to plead causation.

In addition, City's demurrer to the causes of action for negligence, strict liability, premises liability, trespass, nuisance, premises liability, and battery are sustained without leave to amend because there is no common liability for public entities in California. City's demurrer to the cause of action for a dangerous condition of public property is sustained without leave to amend because the complaint fails to state that a physical condition of City's facilities caused Plaintiffs' injuries. City's demurrer to Ms. Green's cause of action for loss of consortium is also sustained without leave to amend because she failed to file a government claim.

i. Motions

to Strike

LAXFuel's

Motion to Strike

LAXFuel

moves to strike Plaintiffs' demand for punitive damages. Because the LAXFuel's demurrer was sustained in its entirety without leave to amend, the motion to strike is moot.

Chevron's

Motion to Strike

Chevron

moves to strike all reference to the words “their ‘alternate entities’” in the complaint on pages 15, 19-23, 25-27, and 30-38. Chevron argues that its “alleged relationship to and liability for its ‘alternate entities’ is based on generic boilerplate comprised of multiple theories of vicarious or joint liability packed together connected by ambiguous “and/or” pleading. The boilerplate allegations here are just as unhelpful, if not worse, than those deemed ‘egregious’ by the Supreme Court in Moore. The Court should therefore strike the ‘alternate entity’ allegations in their entirety.” (Chevron MTS at p.6.)

A

demurrer based on uncertainty only applies where the complaint is so bad that a defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Though California courts take a liberal view toward artfully drawn pleadings, it remains essential to set forth the actionable facts with sufficient precision to inform the defendant of what the plaintiff is complaining about and what remedies are being sought. (*Signal Hill Aviation Co. v. Stroppe* (1979) 96 Cal.App.3d 627, 636.)

Chevron

cites *Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 126 to support its argument that Plaintiffs’ claims against Chevron and its “alternate entities” is ambiguous. In *Moore*, a court noted that the complaint often used the plural “defendants” instead of referring to particular defendants, and that this practice sometimes results in errors, such as the allegation that certain entities, who were not physicians, saw and examined the plaintiff and then hospitalized the plaintiff, even though the complaint specifically pled that the entities did not become involved with the plaintiff until years later. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 126 n.1.) To better make sense of the allegations in the complaint, the Court in *Moore* relied on context in attempting to discern which allegations were directed at each specific defendant. (*Id.*) Chevron also cites *Simmons v. Ware* (2013) 213 Cal.App.4th 1035, 1038 to support its motion, where a court granted judgment notwithstanding the verdict, finding that the complaint there failed to allege vicarious liability because there were no facts that a joint venture existed outside of boilerplate language.

Here,

Plaintiffs' allegations pertaining to Defendants alternate entities are similarly boilerplate. The complaint alleges that "at all times herein mentioned, each of the named Defendants and DOES 1 through 450 owned, leased, occupied, managed, and/or controlled Defendant's Facilities, and/or were the successor, successor-in-business, parent, and/or subsidiary of Defendants' Facilities. Said entities shall hereinafter collectively be called 'alternate entities.'" (Compl. at p.31.) The complaint goes on to name these alternate entities with every cause of action. The complaint contains no specific facts establishing what conduct the alternate entities are responsible for. Additionally, there are no allegations that Defendants are vicariously liable for the actions of the alternate entities referenced in the complaint. Because there are no facts establishing how these alternate entities are relevant to Plaintiffs' claims, Chevron's motion to strike is granted with leave to amend.

V.

Conclusion

The demurrers filed by all Defendants are sustained. These demurrers are sustained without leave to amend as to the causes of action for products liability, nuisance, trespass, and battery. As to Chevron, NRG, and SCE, the demurrers to the remaining causes of action are sustained with leave to amend.

City's demurrer is sustained without leave to amend.

LAXFuel's demurrer is sustained without leave to amend.

Chevron's motion to strike is granted with leave to amend.

LAXFuel's motion to strike is moot.

Plaintiffs may file and serve a first amended complaint on or before September 11, 2026.